Supplementary List Item No. 601

IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **30.03.2026** THROUGH VIDEO CONFERENCING

PRESENT: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:** CA(CAA)/81(CHE)2025
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:** Semac Construction Technologies India Pvt Ltd
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:** Sec 230-232 of CA, 2013

ORDER

Present: Ld. Counsel Shri. Mayan H Jain for the Applicant.

Vide separate order pronounced in Open Court, application is disposed of with directions.

Sd/- **Sd/-**

(VENKATARAMAN SUBRAMANIAM) **(SANJIV JAIN)**
MEMBER (TECHNICAL) MEMBER (JUDICIAL)

MG

Date: 30.03.2026

IN THE NATIONAL COMPANY LAW TRIBUNAL,
DIVISION BENCH - I, CHENNAI

CA(CAA)/81CHE)/2025

(Under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Amalgamation between Semac Construction Technologies India Private Limited, and Semac Construction Limited and their Respective Shareholders and Creditors

Semac Construction Technologies India Private Limited
CIN: U41001TZ2024PTC033112
having its registered office at
SF 331 Pollachi Road, Malumachampatti,
Coimbatore, Tamil Nadu - 641050,
India

…Applicant Company-1/Transferor Company

And

Semac Construction Limited
CIN: L42900TZ1977PLC000780
having its registered office at
SF 331 Pollachi Road,
Malumachampatti,
Coimbatore, Tamil Nadu - 641050,
India

…Applicant Company-2/Transferee Company

Order Pronounced on ***30th March, 2026***

CORAM

SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
SHRI. VENKATRAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s) : Mr. Parvindra Nautiyal

O R D E R

(*Heard through Hybrid mode*)

1. This is a Joint Company Application viz., **CA(CAA)/81(CHE)/2025** filed by **Semac Construction Technologies India Private Limited** (hereinafter "Applicant Company No.1 / Transferor Company"), along with **Semac Construction Limited** , (hereinafter "Applicant Company No.2 / Transferee Company and its Shareholders under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with their Shareholders.

2. The Applicant Companies in this Company Application have sought for the following reliefs;

Particulars	Equity Shareholders	Preference Shareholders	Secured Creditors	Unsecured Creditors
Transferor Company/ Applicant Company -1	To Dispense with the meeting	N/A	To Dispense with the meeting	To Dispense with the meeting
Transferee Company/ Applicant Company -2	To Dispense with the meeting	N/A	To Dispense with the meeting	To Dispense with the meeting

3. The rationale of the scheme is as under:

"The proposed amalgamation would be in the best interest of the Transferor Company, Transferee Company and their respective shareholders, employees, creditors, customers and other stakeholders for the following reasons:

a. Reduction in number of companies and regulatory compliances thereof;

b. Simplification of group structure;

c. Ease of management; and

d. Reduction of overheads including administrative, managerial, and other expenditure, optimal utilization of resources, reduction in multiplicity of legal and regulatory compliances."

4. It is stated that

(i) The Applicant Company No.1/Transferor Company was originally incorporated on 20.03.2008 under the provisions of Companies Act, 1956. Thereafter, it was converted into a Limited Liability Partnership w.e.f. 27.12.2012. It was re-converted into a private company under the provisions of the Companies Act, 2013 on 10.12.2024. The company is engaged in the business of construction of buildings carried out on an own-account basis or on a fee or contract basis. True Copy of the Certificate of Incorporation of the Transferor Company/ Applicant Company No. I and Conversion Certificate issued at the time of conversion to Limited Liability Partnership and newly issued

incorporation certificate as a Private Limited Company are enclosed as **Annexure A-1.**

The authorized, issued, subscribed and paid-up capital of the Transferor Company as on 30.06.2025 are as follows:

PARTICULARS	AMOUNT IN RS.
Share Capital as on 31.03.2025	
Authorised Capital: 10,000 Equity Shares of Rs. 10/- each	1,00,000/-
Total	1,00,000/-
Issued, Subscribed and Paid-up Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000/-
Total	1 ,00,000/-

The turnover of the Applicant Company No.1/Transferor Company for the financial year ended on 31.03.2025 is Rs. 69.68 lakhs and the net worth of the Applicant Company No.1/ Transferor Company is negative Rs. 12.17 lakhs as per Audited Financial Statements.(**Annexure A-4).**

(ii) The Applicant Company No.2/ Transferee Company is a public limited company. It was originally incorporated as Revathi Equipment Limited under the provisions of Companies Act, 1956 on 30.05.1977. Pursuant to the Scheme of Arrangement amongst Renaissance Advanced

Consultancy Limited ("RACL") and Renaissance Consultancy Services Limited ("RCSL") and Renaissance Stocks Limited ("RSL") and Revathi Equipment Limited ("REL") and Semac Consultants Private Limited ("SCPL") and Reniassance Corporate Consultants Limited ("RCCL") and their respective shareholders and creditors, the name of Revathi Equipment Limited was changed to Semac Consultants Limited. As on 19.05.2025, the name of Semac Consultants Limited was changed to Semac Construction Limited. The shares of the Transferee Company are listed on both National Stock Exchange of India Limited and Bombay Stock Exchange Limited. Certified True Copy of the Certificate of Incorporations of the Transferee Company/Applicant Company No.2 are enclosed as **Annexure A-6** .

The authorized, issued, subscribed and paid-up capital of the Transferee Company as on 30.06.2025 are as follows:

PARTICULARS	**AMOUNT IN RS.**
Share Capital as on 31.03.2025	
Authorised Capital: 1,05,00,000 Equity Shares of Rs. 10/- each	10,50,00,000/-
Total	10,50,00,000/-
Issued, Subscribed and Paid-up Capital	

31,17,308 Equity Shares of Rs. 10/- each	3,11,73,080/-
Total	3,11,73,080/-

The turnover of the Applicant Company No.2/Transferee Company for the financial year ended on 31.03.2025 is Rs. 15,854.96 lakhs and the net worth of the Applicant Company No.2/ Transferee Company is positive Rs. 6,389.02 lakhs as per Audited Financial Statements.**(Annexure A-9)**

5. It is stated that this Application has been filed in relation to a Scheme of Amalgamation between **Semac Construction Technologies India Private Limited** *("*Applicant Company No.1/Transferor Company") *and* **Semac Construction Limited** ("Applicant Company No.2/Transferee Company") and their respective shareholders and creditors.

6. It is stated that the Board of Directors of the Applicant Companies at their respective Board meeting held on 30 July 2025, approved and adopted the Scheme of Amalgamation (hereinafter also referred as the "Scheme") by virtue of which Semac Construction Technologies India Private Limited (Applicant Company No. 1 / Transferor Company) is proposed to be amalgamated with Semac Cxfonstruction Limited (Transferee Company/ Applicant Company No. 2) (Together known as "Applicant Companies") as a going concern with all the assets & liabilities. Certified copies of the resolutions are annexed as **Annexure A-11 & A-12.**

7. It is submitted that Under the Scheme, the entire undertaking and business of the Transferor Company/ Applicant Company No. I would stand transferred to and vested in, the Transferee Company/ Applicant Company No.2 on and from the Appointed date that is 1.07.2025 or such other date as this Tribunal may direct. The Scheme is annexed as **Annexure A-15.**

8. It is submitted that none of the Directors and Key managerial Personnel of Applicant Companies have any personal interest in the Scheme otherwise than as Directors and/or Shareholders of the Applicant Companies. It is stated that the Applicant companies are authorised to undergo amalgamation by the object clause of their respective memorandum.

9. The Applicant Companies in regard to convening the meetings of Equity Shareholders, Secured Creditors and Unsecured Creditors have submitted that the meetings of its Equity Shareholders, Secured Creditors and Unsecured Creditors be dispensed with, on the basis of the following reasons:

a. The entire share capital of the Applicant Company No. I Transferor Company is directly held by the Applicant Company No 2/ Transferee Company along with its nominee. Thus, the entire economic interest of the Applicant Company No. 1/ Transferor Company is held by the Applicant Company No. 2/ Transferee Company;

b. The Applicant Company No.1/ Transferor Company, being a wholly owned subsidiary company merging into its holding company, no shares would be issued or allotted by the Transferee Company to the shareholders of the Transferor Company, pursuant to the Scheme;

c. The rights of the creditors of the Applicant Company No. 2/ Transferee Company are not affected since, there will be no reduction in 'their claims and the assets of the Applicant Company No. 2/ Transferee Company, post-merger, will be more than sufficient to discharge their claims,

d. The net worth of the Applicant Company No. 2/ Transferee Company is and will continue to remain highly positive.

e. Further, under the Scheme there is no compromise or arrangement with the shareholders or the creditors of the Applicant Company No. 2/ Transferee Company. Therefore, the proposed Scheme is not prejudicial to the interest of the Shareholders or the Creditors of the Applicant Company No. 2/ Transferee Company.

10. The Applicant Companies rely on the case of ***"Mahaamba Investments Limited V/s. IDI Limited (2001)" 105COMPCAS 16(BOM),*** wherein it was inter alia observed and held that:

" if the Scheme of Amalgamation provides for no issue of equity shares to the members of the Transferor Companies, being a wholly owned subsidiary of the Transferee Company and the creditors of the Transferee Company are not likely to be affected by the Scheme, not required to obtain any consent from the

shareholders and creditors of the Transferee Company and a separate Petition by the Transferee Company was not necessary…"

Additionally, reliance is placed on the following decisions:

(i). "**DLF Phase-IV Commercial Developers Limited & Ors**", in Company Appeal **(AT) No. 180 of 2019** and "**Ambuja Cements Limited**" in Company Appeal (**AT) No. 19 of2021**;

(ii). "IND **Eco Ventures Limited" in C.A.(CAA) No. 32/CHE/2024**, and "**IDFC Financial Holding Company Limited" in C.A.(CAA) No. 02/CHE/2024** and;

(iii). "**Shree Renuka Sugars Limited**" in C.A.(CAA) No. 05/BB/2023, and "**Green piece Landscapes India Private Limited" in C.A.(CAA) No. 22/BB/2022.**

11. It is submitted that there is no compromise or arrangement with shareholders and creditors, and there is no reorganisation of capital of the Applicant Company No.2/ Transferee Company. Hence, convening and holding meeting of Equity shareholders, Secured Creditors and Unsecured creditors and also service of any notice to Equity shareholders, Secured Creditors and Unsecured creditors of the Applicant Company No.2/ Transferee Company, may be dispensed with.

12. It is submitted by the Applicant Company No.2/ Transferee Company that, pursuant to Regulation 37(6) of Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 ("Listing Regulations") read with Master Circular No.

SEBI/HO/CFD/POD-2/P/CIR/2023/93 dated 20.06.2023 issued by the Securities and Exchange Board of India ('SEBI'), the requirement of obtaining prior approval of the stock exchanges has been exempted in case of merger of a wholly owned subsidiary company with its holding company and the listed holding company is only required to file the draft Scheme of Amalgamation along with board resolution passed by the Board of Directors of Transferee Company for the purpose of disclosure and thus, it is not, required to obtain approval of the stock exchanges in terms of the aforesaid regulatory requirements. It is stated that, the Applicant Company No. 2/ Transferee Company has filed the Scheme along with board resolution passed by the Board of Directors of the Transferee Company approving such Scheme, as per Regulation 37(6) of the SEBI Listing Regulations. Copy of the disclosure is annexed as **Annexure A-24**.

13. The Applicant companies have submitted that the Certificate from the Statutory Auditors of the Applicant Company No. 2 / Transferee Company has been obtained to the effect that accounting treatment proposed in the Scheme is in conformity with Accounting Standard as prescribed under Section 133 of the Companies Act, 2013. The Certificate from the Statutory Auditors of the Applicant Company No. 2 / Transferee Company is annexed as **Annexure A-23**.

14. The Applicant companies filed clarifications on 12.10.2025, wherein they explained the reason for not annexing valuation report in pursuance of the scheme of amalgamation. The reason stated is that Semac

Construction Technologies India Private Limited, being a wholly owned subsidiary of Semac Construction Limited, is proposed to be merged with its holding company, Semac Construction Limited. As part of the proposed merger, no new shares will be issued by Semac Construction Limited in consideration of the amalgamation. Accordingly, no valuation report is required to be obtained for scheme of amalgamation of the Transferor Company (Semac Construction Technologies India Private Limited (wholly owned subsidiary company)) with Transferee Company (Semac Construction Limited (holding company)).

APPLICATION FILED UNDER SECTION 9 OF IBC

15. It was observed that one of the creditors of the Applicant Company No.2/ Transferee Company has filed a Section 9 application under Insolvency and Bankruptcy Code, 2016. It is clarified that the application was filed on 20.08.2025. No legal proceedings existed at the time of filing the merger application, The Section 9 application has been filed after the merger application. It is stated that the books of accounts of the Applicant Company No.2/ Transferee Company reflected an advance of Rs. 2.62 crores given to Mittal Construction Company (Section 9 Applicant), hence the name of Mittal Construction Company has not appeared in the list of creditors.

15.1 The Applicant Company No.2/ Transferee Company has stated that no notice of the application was received. The intimation of the application was received only on 07.10.2025 at the registered office of the company.

15.2 The applicant companies have filed detailed written arguments on this issue. It is submitted that mere pendency of an application under Section 9 of the IBC against the Transferee Company does not operate as a bar to the Scheme. No insolvency proceedings of any nature are pending against the Transferor Company, which is the wholly-owned subsidiary proposed to be merged. It is stated that filing or pendency of a Section 9 application does not amount to commencement of the corporate insolvency resolution process unless and until such application is admitted by the Adjudicating Authority and a moratorium under Section 14 of the IBC is declared. In the present case, the Section 9 application is pending consideration and has not been admitted. Consequently, no moratorium is in force and the Transferee Company continues to function as a going concern in the ordinary course of business.

15.3 The applicant companies have submitted as follows:

(i). The absence of an admitted insolvency proceeding or a subsisting moratorium, there is no statutory embargo under the IBC on the consideration or approval of a Scheme of Arrangement or Merger under Sections 230 to 232 of the Companies Act, 2013.

(ii). The proposed merger is in the nature of consolidation of assets in the Transferee Company. As the Transferor Company is a wholly-owned subsidiary, all its assets, properties, rights, interests and liabilities will vest in the Transferee Company pursuant to the Scheme.

(iii). The Scheme does not contemplate any diminution, alienation or diversion of the assets of the Transferee Company. On the contrary, it strengthens the asset base and overall financial position of the Transferee Company.

(iv). The enhancement of the asset base pursuant to the Scheme improves the ability of the Transferee Company to meet its liabilities and obligations, including those towards its creditors. The Scheme therefore operates in furtherance of creditor interests rather than to their detriment.

(v). No creditor of the Transferee Company is prejudiced by the implementation of the Scheme. The rights of all creditors, including the operational creditor who has initiated the Section 9 proceedings, remain fully preserved. The Scheme does not seek to extinguish, compromise or restructure any existing debt or liability, nor does it alter the legal rights or remedies available to any creditor.

(vi). The pending Section 9 proceedings can continue and be adjudicated in accordance with law. It is also a settled position that in a merger between a wholly-owned subsidiary and its holding company, no shares are issued by the transferee company to the members of the transferor company, and the rights of the members or creditors of the transferee company are not affected.

Limited scope of scrutiny

(vii). that any insolvency proceedings are initiated at a later stage, the merged entity along with all its assets would remain subject to the jurisdiction of the appropriate forum, and creditor claims would be dealt with strictly in accordance with the provisions of the IBC and other applicable laws.

(viii). It is well settled that a scheme of arrangement or merger, particularly between a wholly-owned subsidiary and its holding company, is a commercial decision of the companies concerned. At the First Motion stage, the scope of scrutiny is limited to compliance with statutory requirements and the absence of prejudice to stakeholders.

(ix). In the present case, the Scheme satisfies all statutory requirements and does not operate to the detriment of any class of stakeholders, including shareholders, creditors or regulatory authorities.

(x). it is a settled law that when it's a Scheme of Merger between the wholly owned subsidiary (Transferor Company) and the holding company (Transferee Company), the holding/transferee company is not even required to be made party to the Application as no new shares are sought to be issued to the members of the transferor company by the transferee company, the scheme would not affect the members of the transferee company. The creditors of the transferee company are not affected.

(xi). It is further well established that courts and tribunals have, in appropriate cases, dispensed with the meetings of the members and creditors of the transferee company where the transferor company is a wholly owned subsidiary of the transferee company.

16. The following clarifications were sought from the Petitioners vide order dated 09.03.2026:

> *1. It is seen that petition CP(IB)/267(CHE)2025 has been filed against the Transferee Company i.e. Semac Construction Technologies India Pvt. Ltd. Under Section 9 of IBC, 2016. It is listed for hearing on 27.03.2026.*

2. The Applicants are directed to clarify the maintainability of CA(CAA)/81(CHE)/2025 under Section 230-232 of the Companies Act, 2013 in the event that the Transferee Company is admitted to CIRP under Section 9 of IBC, 2016.

17. During the hearing on 27.03.2026, the counsel for the Applicant submitted as under:

The Transferee Company is a solvent company as can be seen from the balance sheet at page 304 of the application, where the assets have been shown as Rs.190.71 crores, whereas the liability has been shown as Rs.64.91 crores. He submits that there is a bank balance in the form of Fixed Deposit for an amount of Rs.48.75 crores. He also referred to the Chartered Accountant report at page 376-377 of the application and stated that there would hardly be any impact post amalgamation. He also submits that Section 9 petition against the Transferee Company has not been admitted yet. He also referred the case laws filed vide SR.No. 560 dated 10.02.2026.

18. We have perused the application and the connected documents/ papers filed therewith including the Scheme contemplated by the Applicant Companies.

19. It is observed that as per the scheme of amalgamation, the rights of creditors of the applicant companies are not affected, their rights or claims over the applicant companies will sustain even after the proposed merger by amalgamation. Being a first motion application for dispensation with meeting of the stakeholders, we are not inclined to make any further remarks on the implication of Section 9 application filed by the creditor of Applicant Company No.2/ Transferee Company. We are of the opinion that the present application, as regards to the meeting of stakeholders of

the Applicant Company No.2/ Transferee Company, is to be dealt in consonance to the decision laid down in ***Mahaamba Investments Limited V/s. IDI Limited(Supra).***

20. The present application, being an application for merger by amalgamation of the applicant companies, and by reason that the wholly owned subsidiary (Applicant Company No.1/Transferor Company) is proposed to be amalgamated with the holding company(Applicant Company No.2/ Transferee Company, this Tribunal issues the following directions:

A. SEMAC CONSTRUCTION TECHNOLOGIES INDIA PRIVATE LIMITED
(APPLICANT COMPANY NO.1/TRANSFEROR COMPANY)

I. EQUITY SHAREHOLDERS

(i) It is represented that, there are **2(Two**) Equity Shareholders of Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of Equity Shareholders is placed as **Annexure A-17** of the application. Both shareholders constituting 100% have provided their consent to the scheme via consent affidavits. Copy of consent affidavits dated is placed as **Annexure A-18**.

(ii) Since it is represented by the Applicant Company-No.1/Transferor Company that the shareholders' consent have been obtained by way of consent affidavits, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

II. SECURED CREDITORS.

(i). It is represented that, there are **Nil** secured creditors to the Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of secured creditors is placed as **Annexure A-19** of the application.

(ii). Since it is represented by the Applicant Company-No.1/Transferor Company that there are Nil secured creditors, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

III. UNSECURED CREDITORS

(i). It is represented that, there are **3 (three)** unsecured creditors to the Applicant Company-No.1/Transferor Company. The Certificate issued by the statutory auditor certifying the list of Creditors is placed as **Annexure A-19** of the application. The consent of one unsecured creditor representing an aggregate of **99.99%** of value by way of consent affidavit, is enclosed as **Annexure A-20.**

(ii). Since it is represented by the Applicant Company-No.1/Transferor Company that the consent of one unsecured creditor representing 99.99% has been obtained, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

B. SEMAC CONSTRUCTION LIMITED
(APPLICANT COMPANY NO.2/ TRANSFEREE COMPANY)

I. EQUITY SHAREHOLDERS

(i) It is represented that, there are **6149(Six thousand one hundred and forty-nine)** Equity Shareholders of Applicant Company-No.2/Transferee Company. The certified true copy of the list of Equity Shareholders is placed as **Annexure A-21** of the application.

(ii) Based on the judgement referred in **Para 9 of Part V** of the application, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

II. SECURED CREDITORS.

(i) It is represented that, there are **2(Two**) secured creditors to the Applicant Company-No.2/Transferee Company. The Certificate issued by the statutory auditor certifying the list of secured creditors is placed as **Annexure A-22** of the application.

(ii) Based on the judgement referred in **Para 9 of Part V** of the application, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

III. UNSECURED CREDITORS

(i) It is represented that, there **164 (one hundred and sixty-four)** unsecured creditors to the Applicant Company-No.2/Transferee Company. The Certificate issued by the statutory auditor certifying the list of unsecured creditors is placed as **Annexure A-22** of the application.

(ii) Based on the judgement referred in **Para 9 of Part V** of the application, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

21. The Application stands **ALLOWED**. The Applicant Companies are directed to file Application for the Second Motion within a period of **fourteen (14)** days from the date of receipt of the Order.

-Sd-	**-Sd-**
VENKATARAMAN SUBRAMANIAM **MEMBER (TECHNICAL)**	**SANJIV JAIN** **MEMBER (JUDICIAL)**